

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 26-02

NANCY PRIOR

COMPLAINANT,

v.

AMOOV GROUP, FREIGHTLEAD LLC, AIR 7 SEAS
TRANSPORT LOGISTICS, INC.

RESPONDENT.

**RESPONDENT FREIGHTLEAD’S REPLY TO COMPLAINANT’S OPPOSITION TO
FREIGHTLEAD’S MOTION TO DISMISS**

Respondent Freightlead LLC (“Respondent” or “Freightlead”), pursuant to 46 CFR §502.70 (c), files this Reply to Complainant’s Opposition to Complainant’s Motion to Dismiss. Entry on Default, and files a Motion to Dismiss pursuant to 46 CFR §502.70 (c).

INTRODUCTION AND PROCEDURAL HISTORY

- On March 3, 2026, Respondent Freightlead filed an Opposition to Complainant’s Motion for Entry of Default and Freightleaad’s Motion to Dismiss.
- On March 5, 2026, Complainant filed an Opposition to Respondent Freightlead’s Motion to Dismiss (“Opposition to MTD”).
- Respondent Freightlead files this Reply to Complainant’s Opposition to Respondent Freightlead’s Motion to Dismiss (“Opposition to MTD”).

RESPONDENT'S REPLY--COMPLAINANT'S OPPOSITION TO FREIGHTLEAD'S MOTION TO DISMISS

I. Statutory Jurisdiction and the Incentive Principle

In its Opposition, Complaint alleges that Respondent Freightlead is a licensed Ocean Transportation Intermediary (OTI) mandated by 46 U.S.C. § 41102(c) to observe just and reasonable practices. Complainant further alleged that under the FMC Incentive Principle, “shipping practices must facilitate, not hinder, the movement of cargo. FreightLead’s sustained refusal to disclose the warehouse location hindered the movement of cargo to facilitate a third-party financial dispute, a practice the Commission has found to be an unreasonable practice. Opposition MTD at 1.

The Complainant’s foregoing argument should be rejected as it distorts and omits key sections of the FMC’s Part 545, Interpretive Rule (Interpretation of Shipping Act of 1984—Unjust and unreasonable practices with respect to demurrage and detention). Complainant failed to identify the five elements to establish a successful claim for reparations for violations of 46 USC 41102(c), which states: “A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c). The Commission has identified five factors required to establish a violation of this section, which requires the following elements to establish a successful claim for reparations:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;

(d) The practice or regulation is unjust or unreasonable; and

(e) The practice or regulation is the proximate cause of the claimed loss. 46 C.F.R. 545.4. The complaint also alleges a violation of 46 C.F.R. § 545.5. “The purpose of this rule is to provide guidance about how the Commission will interpret 46 U.S.C. 41102(c) and § 545.4(d) in the context of demurrage and detention.” 46 C.F.R. § 545.5(a). See 46 U.S.C. 41102(c)

Here, Complainant has failed to plead all the elements required to prove a violation of 41102(c), as enumerated above. Respondent Freightlead incorporates by reference its arguments in its MTD, including that it did not act as an NVOCC common carrier as that term is defined under the Shipping Act, as amended.

II. Evidence of Willful Delay and Constructive Possession

Freightlead disagrees with Complainant’s argument that Freightlead willfully delayed the release of Complainant’s shipment by:

1. **Non-Disclosure of Essential Shipping Information:** In its Opposition to the MTD, Complainant alleged that in November 2025, a Complainant’s representative visited Freightlead’s NJ facility to request a bill of lading (“B/L”) and identity of the physical location of the subject cargo. Complainant further alleged that Freightlead’s representative, Aras Kaya, acknowledged Complainant’s shipments in its internal records but explicitly refused to release the B/L or disclose the warehouse location. Complainant referenced Exhibit 1, Declaration of David Thomas Driscoll (“Driscoll Declaration”).

Complainant’s allegation that Freightlead’s Mr. Kaya’s “explicitly refused to release the B/L or disclose the warehouse location.”, is incorrect. This statement is contradicted by the Driscoll Declaration, wherein Mr. Driscoll represents that Mr. Kaya provided Mr. Driscoll with the warehouse location, telephone number, and name of contact

person at 7 Seas, who had control of Ms. Prior's shipment. Mr. Kaya also provided Mr. Driscoll with an email for the contact person at Amoov. See Supplemental Declaration of Ms. Maya Ozge Akdogan in Support of Freightlead's Reply to Complainant's Opposition to Freightlead's Motion to Dismiss at Pg 2, ¶ 4.

2. **Subordination of Access to a Third-Party Intermediary:** Complainant next argues that Freightlead's Mr. Kaya provided Complainant's representative with a handwritten note directing that all shipment release inquiries be referred to an individual at Air 7 Seas. Complainant then jumps to the conclusion that by subordinating Complainant's access to information about her shipment to the discretion of a third-party intermediary, Freightlead became an "operational gatekeeper" and cause of the continued withholding of Complainant's shipment.

Respondent Freightlead replies that it only acted in good faith and provided to Complainant and its representative the location of her shipment, with the warehouse location, telephone number, and name of contact person at 7 Seas, who had control of Ms. Prior's shipment. Mr. Kaya also provided Mr. Driscoll with an email for the contact person at Amoov. In addition, despite explaining to Ms. Prior that Freightlead's responsibility concluded upon Freightlead's assistance in arranging for delivery of her shipment to the assigned warehouse, Freightlead provided, in good faith, Ms. Prior with a copy of the Master Bill of Lading she requested, and the unredacted invoice issued to Amoov and redacted by Amoov, in the amount of \$650.00, for services provided by Freightlead at destination. Finally, with Freightlead's assistance Ms. Prior's HHGs shipment was released shortly after my 3-way call with Ms. Prior and Air 7 Seas. See Freightlead's MTD and Exhibit C, Ms. Maya Ozge Akdogan Declaration in Support of Freightlead's Motion to

Dismiss, and attached hereto, Supplemental Declaration of Ms. Maya Ozge Akdogan in Support of Freightlead's Reply to Complainant's Opposition to Freightlead's Motion to Dismiss at Pg 2, ¶ 4.

3. **Prolonged Period of Negligence and Active Withholding:** Complainant next argues that Freightlead's failure to observe just and reasonable practices extends from the cargo's arrival in Miami in August 2025 through the date of disclosure in December. Complainant further argues that somehow Complainant's shipment was under the control of Freightlead and for months and that Freightlead "actively" withheld shipment information from Complainant for a period of 40 consecutive days, and that this period of non-cooperation terminated only on December 23, 2025, after the filing of the Formal Complaint. Opposition at 3, ¶ 3.

Respondent Freightlead rejects any allegation that Freightlead actively withheld Complainant's shipment information, and on the contrary, provided shipment information to Complainant's representative and to Complainant as explained above and herein. See Freightlead's MTD and Exhibit C, Ms. Maya Ozge Akdogan Declaration in Support of Freightlead's Motion to Dismiss, Supplemental Declaration of Ms. Maya Ozge Akdogan in Support of Freightlead's Reply to Complainant's Opposition to Freightlead's Motion to Dismiss at Pg 2, ¶ 4, and attached hereto,

4. **Causation and Aggregate Damages:** Complainant finally argues that Freightlead was the proximate cause of Complainant's damages because Freightlead's immediate disclosure of shipment information after her complaint was filed confirmed Freightlead's capacity to facilitate the delivery of her shipment at any time after the cargo's arrived in Miami. Complainant argues

that Freightlead's sustained failure to notify and subsequent refusal to cooperate were the proximate cause of Complainant's damages of \$21,419.64.

Freightlead replies that it did not have any continuing obligations after it fulfilled its delivery-destination agent obligations, which included filing the ISF, arranging for U.S. Customs clearance, and arranging for the delivering of Ms. Prior's container from the destination terminal to the warehouse designated by Amoov. Thereafter, Freightlead had no further obligations and responsibilities. See Freightlead's MTD and Exhibit C, Ms. Maya Ozge Akdogan Declaration in Support of Freightlead's Motion to Dismiss, Supplemental Declaration of Ms. Maya Ozge Akdogan in Support of Freightlead's Reply to Complainant's Opposition to Freightlead's Motion to Dismiss, attached hereto,

Conclusion

For the foregoing reasons, the Respondent Freightlead respectfully requests that the Complaint in this proceeding be dismissed with prejudice.

Respectfully Submitted



Respectfully submitted,
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Attorneys for Respondent Freightlead LLC

Dated: March 12, 2026

CERTIFICATE OF SERVICE

I certify that on March 12, 2026, the foregoing Respondent Freightlead's Reply to Complainant's Opposition to Freightlead's Motion to Dismiss Was Served Via electronic mail on:

Complainant Nancy Prior: nancyrprior@gmail.com

Counsel for Respondent Air 7 Seas Logistics: bec@cargolaw.com

Respondent Amoov Group: connect@amoovgroup.com

/s/ Henry P. Gonzalez

Dated: March 12, 2026

Attachment: Supplemental Declaration of Ms. Maya Ozge Akdogan in Support of Freighlead's Reply to Complainant's Opposition to Freighthead's Motion to Dismiss